

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

July 30, 2026

8:30 a.m./1:30 p.m.

3. JENNIFER DANIELS V. JOSE CARRERO

PFL20170812

Respondent filed a Request for Order (RFO) on June 1, 2026, requesting clarification of the current orders regarding communication with the minor and appointment of minor's counsel.

Petitioner filed a Responsive Declaration to Request for Order on June 1, 2026.

On July 16, 2026, a hearing on the RFO was held and the matter was continued to the present date. Pending the continued hearing date, Respondent was permitted to have phone contact with the minor.

Neither party has filed a supplemental declaration since the last hearing.

Respondent is requesting clarification of the court's prior orders regarding phone and text contact with the minor pending trial. He further requests the appointment of minor's counsel for the minor.

Petitioner opposes the request for minor's counsel and argues that counsel is not needed under the circumstances. She does not address the issue of phone/text contact with the minor.

The appointment of minor's counsel is a discretionary decision to be made where the court finds that it would be in the best interest of the child. Cal. Fam. Code § 3150. In making such a determination the court should consider "whether: (1) the issues of child custody and visitation are highly contested or protracted; (2) the child is subjected to stress as a result of the dispute that might be alleviated by the intervention of counsel representing the child; (3) counsel representing the child would be likely to provide the court with relevant information not otherwise readily available or likely to be presented; (4) the dispute involves allegations of physical, emotional, or sexual abuse or neglect of the child; (5) it appears that one or both parents are incapable of providing a stable, safe, and secure environment; (6) counsel is available for appointment who is knowledgeable about the issues being raised regarding the child in the proceeding; (7) the best interest of the child appears to require independent representation; and (8) if there are two or more children, any child would require separate counsel to avoid a conflict of interest." Cal. Rule Ct. 5.240.

Taking into consideration the relevant factors listed above, the court does find grounds for the appointment of minor's counsel in the present situation. The issue of

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custody is quite clearly a protracted dispute between the parties and the matter is set for trial on that issue in October. As noted by the CCRC Counselor, the child appears to have been placed at the forefront of many of the disputes between the parties thereby causing him stress which may be alleviated by the appointment of counsel. The dispute does involve allegations of abuse against the minor and concerns regarding each party's ability to provide a stable home environment. And while the court concedes that the minor is articulate and at an age where he is able to provide relevant information to the court, the court still finds that overall, the weight of the factors set forth in rule 5.240 does err on the side of appointment. In light of the foregoing, the request to appoint minor's counsel is granted. The court hereby appoints Kelly Bentley as minor's counsel.

Regarding phone contact with the minor, the court is maintaining its orders from July 16, 2026.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #3: THE REQUEST TO APPOINT MINOR'S COUNSEL IS GRANTED. THE COURT HEREBY APPOINTS KELLY BENTLEY AS MINOR'S COUNSEL. REGARDING PHONE CONTACT WITH THE MINOR, THE COURT IS MAINTAINING ITS ORDERS FROM JULY 16, 2026.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.